

CONFIDENTIAL & PROPRIETARY

MASTER SERVICES AGREEMENT

ENTERPRISE SOFTWARE AND PROFESSIONAL SERVICES

BY AND BETWEEN:

NEXUS ENTERPRISE SOLUTIONS, INC.

("Provider")

AND

STRATOSPHERE GLOBAL HOLDINGS CORP.

("Customer")

Effective Date: May 20, 2026

Agreement Reference: MSA-2026-NX-88942

Governing Law: State of Delaware, United States

MASTER SERVICES AGREEMENT

This Master Services Agreement (this "Agreement" or "MSA") is entered into as of May 20, 2026 (the "Effective Date"), by and between **Nexus Enterprise Solutions, Inc.**, a Delaware corporation with its principal place of business at 500 Innovation Way, Suite 1100, Wilmington, DE 19801 ("Provider"), and **Stratosphere Global Holdings Corp.**, a Delaware corporation with its principal place of business at 1251 Avenue of the Americas, New York, NY 10020 ("Customer"). Provider and Customer may each be referred to herein individually as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, Provider is engaged in the business of developing, licensing, hosting, and maintaining enterprise-grade cloud software architectures and providing specialized deployment, integration, and advisory professional services related thereto; and

WHEREAS, Customer desires to retain Provider to provide access to its proprietary cloud software platform and to perform certain development, engineering, or support services, and Provider desires to provide such software access and perform such services, subject to the terms and dense protective structures set forth in this Agreement and any applicable Statements of Work ("SOW") or Order Forms executed hereunder.

NOW, THEREFORE, in consideration of the mutual covenants, premises, promises, and conditions hereinafter set forth, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereto, intending to be legally bound, agree as follows:

1. DEFINITIONS AND CONSTRUCTION

1.1 Definitions. Capitalized terms used in this Agreement shall have the meanings specified in this Section 1 or as otherwise explicitly defined within the context of specific provisions of this Agreement:

- **"Affiliate"** means, with respect to any legally recognized Entity, any other entity that directly or indirectly Controls, is Controlled by, or is under common Control with such entity, where "Control" signifies the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of an entity, whether through the ownership of more than fifty percent (50%) of the voting security or equity interests, by contract, or otherwise.
- **"Authorized User"** means any employee, independent contractor, consultant, agent, or third-party representative of Customer or its designated Affiliates who is explicitly authorized by Customer to access and utilize the Cloud Services under an active Order Form and for whom access credentials have been provisioned by Provider.
- **"Cloud Services"** means the specific enterprise SaaS platform solutions, APIs, machine learning components, data pipeline layers, and system interfaces hosted by or on behalf of Provider, as specified and ordered within an authorized Order Form, including any and all Updates, hotfixes, or patches made generally available to clients without extra charge.
- **"Customer Data"** means any and all structured data, raw text, programmatic queries, visual images, binary files, audio components, or personal information ingested, processed, transferred, stored, or generated on behalf of Customer or its Authorized Users through the operation of the Cloud Services.
- **"Intellectual Property Rights"** means all globally recognized statutory and common law rights in, arising out of, or associated with: (i) patents and patent applications; (ii) trade secrets, confidential corporate architectures, source

code, and industrial designs; (iii) copyrights, mask works, and typographic configurations; (iv) trademarks, trade names, corporate insignias, and domain registrations; and (v) any translations, adaptations, derivatives, or renewals thereof.

1.2 Order of Precedence. In the structural event of any direct or latent operational conflict between the boilerplate terms of this Master Services Agreement and any subsequently executed Statement of Work or Order Form, the specific provisions of this MSA shall strictly prevail, unless the applicable SOW or Order Form explicitly identifies the specific section of this MSA it intends to override, references this Section 1.2, and contains signed authorization from the Chief Legal Officer of each Party acknowledging the intent to alter the baseline MSA structure.

2. SAAS PROVISIONING AND USAGE RIGHTS

2.1 License Grant and Platform Access. Subject to Customer's continuous and complete compliance with all financial obligation structures and usage boundaries set forth herein, Provider hereby grants to Customer, during the applicable Subscription Term, a non-exclusive, non-transferable (except as allowed under Section 14.4), non-sublicensable, worldwide, revocable right and license for Authorized Users to access, interact with, configure, and utilize the Cloud Services solely for the internal enterprise operations of Customer and its authorized Affiliates.

2.2 Permitted Usage Restrictions. Customer explicitly covenants, warrants, and agrees that it shall not, directly or indirectly, nor shall it permit any third party or Authorized User to: (i) reverse engineer, decompile, disassemble, translate, parse, or attempt to derive or reconstruct the source code, underlying algorithms, math models, or logic of the Cloud Services; (ii) modify, copy, extract structural elements from, or build derivative works upon the platform infrastructure; (iii) bypass, defeat, or circumvent any digital rights management protocols, volume caps, multi-tenant security barriers, or API throttling frameworks implemented by Provider; (iv) lease, rent, resell, time-share, or use the system to run a commercial service bureau; or (v) utilize the platform to ingest malware, spyware, unauthorized scraping scripts, or prohibited content violating local laws.

3. PROFESSIONAL SERVICES AND STATEMENT OF WORK ARCHITECTURE

3.1 Statement of Work Execution. From time to time, the Parties may agree to execute specific Statements of Work ("SOW") detailing professional engineering, custom database integrations, enterprise provisioning, system migrations, or training workflows to be executed by Provider. Each SOW shall be sequentially numbered, executed by authorized signatories of both organizations, and must specify the precise scope of deliverables, milestone deadlines, engineering estimation metrics, and acceptance criteria.

3.2 Change Control Management. If Customer requests any material alteration, extension, or modification to the scope of an active SOW, Provider shall generate a formal Change Order detailing the projected adjustments to implementation timelines, resource allocation blocks, and additional professional billing rates. No Change Order shall be legally binding upon either Party until it is executed in writing by both Project Managers.

4. FINANCIAL TERMS, INVOICING PROTOCOLS, AND TAXATION

4.1 Subscription and Professional Fees. Customer shall compensate Provider for all software subscription entitlements and professional service blocks as detailed inside individual Order Forms or SOWs. All financial

obligations are non-cancelable, and all fees remitted are completely non-refundable, except as expressly provided in Section 9.2 or Section 10.1 of this Agreement.

4.2 Invoicing, Payment Window, and Late Penalties. Provider will issue digital invoices to Customer's designated accounts payable department in accordance with the schedule specified in the Order Form. Customer shall remit full payment in US Dollars via wire transfer or ACH clearance within thirty (30) calendar days from the dated receipt of the invoice ("Net 30"). Any undisputed outstanding balances remaining unpaid past said window shall accrue a compound interest penalty equivalent to one and one-half percent (1.5%) per month, or the maximum rate permissible under applicable state statutes, whichever is lower, calculated daily from the original due date until fully settled.

4.3 Disputed Invoices. If Customer reasonably and in good faith disputes any segment of an invoice, Customer must notify Provider's finance director in writing within ten (10) business days of invoice receipt, providing detailed audit trails of the discrepancies. Customer shall pay all undisputed portions of the invoice on time; non-payment of disputed amounts under this clause shall not constitute a default if the dispute is actively managed under Section 13.

5. PROPRIETARY RIGHTS AND DATA SECURITY PARADIGMS

5.1 Allocation of Ownership. As between the Parties, Provider retains sole, exclusive, and unchallengeable title, ownership, and all Intellectual Property Rights in and to the Cloud Services, the underlying architecture, the operational metadata generated by platform performance, anonymized aggregated metrics data, and all documentation or artifacts constructed by Provider during the execution of any Professional Services. Customer retains sole and exclusive ownership of all Intellectual Property Rights in and to the Customer Data.

5.2 Data Protection and Cybersecurity. Provider shall implement, execute, and continuously update comprehensive administrative, technical, physical, and logical safeguards designed to guarantee the confidentiality, data integrity, and strict availability of Customer Data. These structures shall align with SOC 2 Type II framework constraints, ISO/IEC 27001 baseline certifications, and applicable data privacy regimes (including GDPR, CCPA, and HIPAA where cross-border information processing triggers apply).

6. CONFIDENTIALITY AND NON-DISCLOSURE SAFEGUARDS

6.1 Definition of Confidential Information. "Confidential Information" means all information disclosed by a Party ("Disclosing Party") to the other Party ("Receiving Party"), whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information includes, without limitation, source code, roadmap architectures, business models, vendor agreements, financial balances, security audit logs, and Customer Data.

6.2 Exclusions from Protection. Confidential Information shall not encompass any data or information that: (i) is or becomes publicly available through no malfeasance or breach by the Receiving Party; (ii) was legitimately in the possession of the Receiving Party prior to disclosure without restriction; (iii) is independently developed by the Receiving Party without reference to or reliance upon the Disclosing Party's data; or (iv) is rightfully acquired from a third party without breach of any confidentiality parameters.

7. TERM, TERMINATION MATRICES, AND DE-PROVISIONING PROTOCOLS

7.1 Master Term. This Agreement shall commence on the Effective Date and shall remain in full force and effect for an initial period of five (5) continuous years (the "Initial Master Term"), unless terminated earlier in accordance with the explicit contractual provisions set forth below.

7.2 Termination for Cause. Either Party may terminate this Agreement and any active Order Forms or SOWs for cause upon written notice if the other Party: (i) commits a material breach of this Agreement and fails to cure such breach within thirty (30) calendar days from receipt of detailed written notice describing the breach; (ii) becomes the subject of a petition in bankruptcy or any other proceeding relating to insolvency, receivership, liquidation, or assignment for the benefit of creditors.

7.3 Suspension of Service. Provider reserves the absolute right to suspend access to the Cloud Services immediately, without liability or prejudice to other legal remedies, if Customer's accounts remain past due for more than forty-five (45) calendar days, or if Provider determines in good faith that Customer's usage configuration poses an active, existential threat to the stability, multi-tenant integrity, or security of Provider's system infrastructure.

8. WARRANTIES, REPRESENTATIONS, AND STATUTORY COVENANTS

8.1 Mutual Representations and Warranties. Each Party represents, warrants, and covenants to the other that: (i) it is a corporation duly organized, validly existing, and in good standing under the laws of its jurisdiction of incorporation; (ii) it possesses the full corporate power, authority, and legal right to enter into and perform its obligations under this Agreement; and (iii) the execution and delivery of this MSA has been duly authorized by all necessary corporate actions.

8.2 Provider Performance Warranties. Provider warrants that during the applicable Subscription Term: (i) the Cloud Services shall operate in substantial conformity with the technical documentation provided to Customer; and (ii) Professional Services shall be performed in a professional, workmanlike manner by qualified personnel, in adherence with prevailing software engineering industry standards.

8.3 Statutory Disclaimer. EXCEPT FOR THE EXPRESS WARRANTIES STATED IN THIS SECTION 8, PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. PROVIDER DOES NOT WARRANT THAT THE CLOUD SERVICES WILL BE COMPLETELY ERROR-FREE, UNINTERRUPTED, OR ABSOLUTELY SECURE FROM ALL EVOLVING CYBERSECURITY THREAT ARTIFACTS.

9. TRIPLE INDEMNIFICATION STRUCTURAL FRAMEWORK

9.1 Provider Intellectual Property Indemnity. Provider shall defend, indemnify, and hold harmless Customer, its Affiliates, directors, officers, and employees from and against any and all third-party claims, demands, suits, or proceedings ("Claims") alleging that Customer's authorized use of the Cloud Services infringes or misappropriates any globally recognized patent, copyright, trademark, or trade secret right of an independent third party. Provider shall pay all court-awarded damages, legal fees, and settlement blocks finalized against Customer under such Claims, provided Customer gives immediate notice, exclusive control of the defense, and full cooperation to Provider.

9.2 IP Mitigation Options. If the Cloud Services become, or in Provider's reasonable estimation are likely to become, the subject of an infringement Claim under Section 9.1, Provider may, at its sole financial option and expense: (i) procure for Customer the right to continue utilizing the system; (ii) replace or modify the software infrastructure to render it non-infringing while maintaining functional parity; or (iii) if options (i) and (ii) are commercially unfeasible, terminate the applicable Order Form and remit a pro-rata refund of any unearned pre-paid subscription fees remaining for the balance of the term.

9.3 Customer Data and Usage Indemnity. Customer shall defend, indemnify, and hold harmless Provider, its sub-processors, engineering teams, and Affiliates from and against any and all third-party Claims arising out of or relating to: (i) Customer Data ingested into the platform which violates third-party privacy rights, data sovereignty laws, or IP properties; or (ii) explicit utilization of the platform by Authorized Users in direct violation of the usage boundaries set forth under Section 2.2.

9.4 Data Breach and Cybersecurity Indemnity. In the catastrophic event of an unauthorized extraction, leak, or compromise of Customer Data resulting directly from Provider's willful neglect, gross negligence, or systemic failure to enforce the cybersecurity architectures detailed in Section 5.2, Provider shall indemnify and defend Customer against third-party regulatory enforcement actions, class-action consumer litigation, and statutory privacy claims. This specific indemnification is subject to the Super-Cap limitations outlined in Section 10.2.

10. LIMITATIONS OF LIABILITY AND RISK ALLOCATION MATRIX

10.1 Waiver of Consequential and Indirect Damages. IN NO EVENT SHALL EITHER PARTY, NOR THEIR RESPECTIVE DIRECTORS, OFFICERS, SHAREHOLDERS, OR AFFILIATES, BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, EXEMPLARY, COVER, OR CONSEQUENTIAL DAMAGES, INCLUDING WITHOUT LIMITATION LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF BUSINESS REPUTATION, SYSTEM DOWNTIME COST, OR LOSS OR CORRUPTION OF ENTERPRISE DATA, ARISEN OUT OF OR CONNECTED WITH THIS AGREEMENT, REGARDLESS OF THE THEORY OF LIABILITY (CONTRACT, TORT, STRICT PRODUCT LIABILITY, OR OTHERWISE), EVEN IF THE PARTY WAS ADVISED OF THE POSSIBILITY OF SUCH INJURY.

10.2 Monetary Liability Caps and Super-Caps. Except for a Party's breach of confidentiality (Section 6), explicit infringement indemnification payouts (Section 9.1), or Customer's core payment defaults (Section 4), each Party's maximum aggregate cumulative liability under this Agreement shall be strictly capped at the total financial fees paid by Customer to Provider under the specific Order Form triggering the liability during the twelve (12) month period immediately preceding the date of the event giving rise to the claim.

Notwithstanding the foregoing, for all data protection, regulatory privacy, and data breach liabilities covered under Section 9.4, the Parties establish a separate, non-cumulative "Super-Cap" equivalent to five (5) times the standard twelve-month liability allocation matrix.

11. SERVICE LEVEL AGREEMENTS (SLA) AND SYSTEM AVAILABILITY

11.1 System Availability Target. Provider warrants that the production environments of the Cloud Services shall maintain an Uptime percentage of ninety-nine and nine-tenths percent (99.9%) during each calendar month of the Subscription Term, excluding explicitly scheduled maintenance windows, emergency security hotfixes, and Force Majeure blockages.

11.2 Service Credits. In the structural event that Provider fails to meet the Uptime target specified above, Customer's sole and exclusive remedy, and Provider's entire liability, shall be the issuance of Service Credits calculated as a percentage deduction from the next monthly recurring billing cycle, varying from ten percent (10%) to fifty percent (50%) of the pro-rated fee depending on the total duration of the system blackout vector.

12. COMPLIANCE WITH LAWS AND EXPORT CONTROL REGIMES

12.1 Compliance Covenants. Each Party agrees to comply, at its own operational expense, with all local, state, federal, and international laws, regulations, and executive orders applicable to its performance under this Agreement, including without limitation anti-bribery statutes (US Foreign Corrupt Practices Act and UK Bribery Act) and data sovereignty mandates.

12.2 Export Controls. The Cloud Services, underlying tech stacks, and technical data derived therefrom may be subject to US export control regulations (Export Administration Regulations) and economic sanction frameworks (OFAC). Customer warrants that it shall not permit any Authorized User to access or download software components from within a US-embargoed nation or in violation of restricted party lists.

13. ALTERNATIVE DISPUTE RESOLUTION FRAMEWORK

13.1 Executive Escalation Protocol. In the event of any dispute, claim, question, or disagreement arising from or relating to this Agreement, the Parties shall first utilize their best efforts to settle the dispute. To this end, senior operational managers shall meet within ten (10) business days of written notice to negotiate a resolution. If the managers fail to reach terms, the dispute shall be escalated to the Executive Officer level (C-level) for a mandatory secondary consultation window of fifteen (15) additional days.

13.2 Mandatory Binding Arbitration. If an executive resolution is not achieved under Section 13.1, the dispute shall be settled by mandatory, binding arbitration administered by the American Arbitration Association ("AAA") in accordance with its Commercial Arbitration Rules. The arbitration panel shall consist of three (3) neutral arbitrators specializing in enterprise technology law. The venue for arbitration shall be Wilmington, Delaware, and the language of proceedings shall be English. The decision of the arbitrators shall be final, unappealable, and may be entered into any court of competent jurisdiction.

14. MISCELLANEOUS BOILERPLATE AND GENERAL PROVISIONS

14.1 Governing Law and Forum Selection. This Agreement, and all claims or causes of action arising out of its execution, shall be governed by, and construed in strict accordance with, the laws of the State of Delaware, without giving effect to any choice of law or conflict of law rules that would result in the application of the laws of a different jurisdiction.

14.2 Force Majeure. Neither Party shall be held liable or deemed in default for any delay or failure in performance under this Agreement resulting directly from causes beyond its reasonable control, including acts of God, systemic cyber warfare attacks targeting national DNS servers, widespread grid failures, pandemics, civil unrest, strikes, or government lockdowns.

14.3 Notices. All legal notices, demands, or waivers required under this MSA shall be written in English and delivered via certified mail (return receipt requested) or premium international courier (FedEx/DHL) to the corporate headquarters addresses specified on page 1, directed to the attention of the General Counsel.

14.4 Assignment. Neither Party may assign or transfer its rights or delegate its obligations under this MSA, whether by operation of law, merger, consolidation, or sale of assets, without the prior written consent of the other Party; provided, however, that either Party may assign this Agreement in its entirety to an Affiliate or a bona fide successor-in-interest pursuant to a corporate restructuring or change of control event.

14.5 Severability. If any provision, clause, or covenant of this Agreement is held by an arbitrator or court of competent jurisdiction to be invalid, illegal, or unenforceable, the remaining provisions of this Agreement shall remain unimpaired and in full force, and the invalid segment shall be replaced with a legally valid provision that most closely reflects the original economic intent of the Parties.

14.6 Survival. The provisions of Sections 1, 4, 5.1, 6, 9, 10, 13, and 14 shall survive any expiration or termination of this Master Services Agreement.

14.7 Entire Agreement and Amendments. This Agreement, including all cross-referenced Order Forms, Statements of Work, and attached exhibits, constitutes the entire agreement between the Parties regarding this subject matter, and supersedes all prior oral or written agreements, draft proposals, or memoranda of understanding. No modification, amendment, or waiver of any provision of this MSA shall be valid or effective unless executed in a formal written addendum signed by authorized executive officers of both Parties.

IN WITNESS WHEREOF, the Parties hereto have caused this Master Services Agreement to be executed by their duly authorized corporate officers as of the Effective Date.

FOR PROVIDER:

Nexus Enterprise Solutions, Inc.

FOR CUSTOMER:

Stratosphere Global Holdings Corp.

By: Jonathan Vance
Title: Chief Executive Officer

By: Marcus Vance-Avery
Title: Chief Technology Officer